

See Line 16 below.

Law & Motion

3. 9:00 AM CASE NUMBER: C22-00737

CASE NAME: SAHAR VS. SHEFAYEE JR.; MILLER

***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS INCURRED ON APPEAL CCP 425.16(C)(1)
FILED BY:**

TENTATIVE RULING:

Defendant Miller filed this motion for attorney's fees and costs incurred in successfully opposing an appeal by plaintiff. On the original motion hearing date, the Court noted that there was no proof that the motion had been served on the opponent, and continued the motion to today with directions that the moving party must provide proper proof of service. Nothing has been filed since then, and there is still no indication that the motion was served, or that plaintiff is even aware of its existence. The motion is accordingly **denied** for failure to serve the motion and to comply with the Court's prior order.

4. 9:00 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

***HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL
FILED BY: WHEATON, R.N., JEFF**

TENTATIVE RULING:

The calendaring of events in this case is a confusing spider web of events. The bottom line, however, is that we need to ascertain whether plaintiff's counsel is or is not going to continue to represent plaintiff, and whether (and how) plaintiff is going to continue to litigate the case, before we can fairly ask her or any of the other parties to proceed to full consideration of any of the substantive matters now before the Court.

There are three summary judgment motions on today's calendar, two of which were only belatedly added onto this calendar. Plaintiff, however, has sought to continue those motions because she asserts she needs some still-pending discovery in order to respond to them. Her own motion to compel the discovery she says she needs for that purpose is calendared for June 17.

There is also a motion to file under seal. Two related motions to file under seal, however, have been noticed for April 29, coinciding with a CMC set for that date. Even absent other concerns, the summary judgments should await ruling on the motions to seal.

And perhaps most consequentially, plaintiff's counsel has filed a motion for leave to withdraw from the representation, also calendared for June 17.

We need to find out whether plaintiff is going to continue pursuing this case, and if so, whether with